

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

JOINT STATUS REPORT 9 (May 2026)

Pursuant to 46 C.F.R. § 502.141(h), the March 23, 2026 Order Granting Joint Motion to Extend Deadlines and Third Amended Scheduling Order (the “Scheduling Order”), Samsung Electronics America, Inc. (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL,” and collectively with SEA, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.¹

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

Complainant – Samsung Electronics America, Inc.

1. DISCOVERY:

a. Current Status

SEA fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages.

OOCL once again asserts it has completed its production and discovery obligations, this time as of April 13, 2026. As of the date of this report, OOCL has recently dumped an additional 209,795 documents comprising 609,859 page more than six months after it first claimed that it had completed its document production.

SEA continues to be prejudiced by OOCL's dilatory, evasive, and incomplete responses to discovery, including its random discovery processes and methods of searching its own databases. Notwithstanding Mr. Carruth's March 13, 2026 declaration acknowledging that a data "anomaly" caused documents to be missed across OOCL's prior productions, OOCL has not indicated if or how the anomaly was remediated in connection with its latest production of more than 551,283 pages. Of the searches conducted of this production set thus far, there still appear to be no responsive documents from the actual Respondents. Moreover, OOCL continues to refuse to comply with the ALJ's order with regard to its discovery declarations. As to one of the key questions – the basis for OOCL's imposition of the specific demurrage charges at issue – which the Presiding Officer directed OOCL to answer under oath, OOCL has still not answered.

SEA notes that OOCL's dilatory conduct has caused substantial prejudice to SEA in the form of significant delay, an unreasonably long discovery timeline, an inability to prepare for deposition work in an orderly and logical fashion, and has imposed significant excess costs to SEA. Accordingly, in light of OOCL's continued shirking of its discovery obligations, its repeated misrepresentations to

the court, including in connection with the ALJ's February 20, 2026 Order, SEA filed a Motion for Sanctions on Friday, April 24, 2026. SEA did so regretfully, in recognition of the fact that extending the discovery timetable yet again would only serve to reward OOCL for its continued evasion of its discovery obligations as a regulated carrier.

b. Discovery Overview (April 2026)

With respect to discovery progress between the Parties since April, the parties met and conferred in connection with the prior Joint Status Report (JSR 8 / April 2026). On April 2, 2026, OOCL sent SEA its Production 009, which OOCL explained in a subsequent email was the result of re-running searches against collections that were identified as having an "anomaly" as stated in Mr. Carruth's declaration of March 13, 2026. Mr. Carruth's declaration states that *only two* custodians were analyzed after the glitch was identified. But OOCL has never been explained why only two custodians were analyzed and not others. PROD009 consisted of 2,996 documents totaling 18,964 pages.

On April 11, 2026, OOCL produced its 10th set of documents to SEA. This production, PROD010, was a massive dump containing 158,220 documents consisting of 423,211 pages. On April 13, 2026, OOCL produced a further set of documents. PROD011 consists of 29,898 documents totaling 109,108 pages. With the April 13th production, OOCL included a letter explaining the contents of PROD010 and PROD011 and stated that it believed its production was complete, subject to any supplemental productions to resolve any potential disputes. OOCL furnished no explanation for why these documents had not been previously identified, located, or produced previously.

On April 14, 2026, the parties met and conferred to discuss OOCL's productions, SEA's concerns with the various declarations as expressed in SEA's March 31 letter, whether Gavin Murdoch could produce evidence of authority from each Respondent to act on its behalf in this proceeding. The meet and confer resulted in OOCL confirming it believed its productions were complete as of April

13 and that it would review SEA's request for verification that the officers of OOCL (USA) Inc., such as Gavin Murdoch, have due authority from each Respondent to act on its behalf in connection with this proceeding. SEA again requested supplementation of OOCL's declaration at that meeting. SEA confirmed with OOCL that it did not intend to supplement its responses.

As a result of that meet and confer, SEA confirmed via letter on April 15, 2026, that it intended to move forward with a Motion to Compel and identified the following deficiencies with respect to OOCL's declarations:

1. A description of the manner in which custodians and/or data repositories were identified and determined to be likely to have responsive information;
2. A description of the process by which OOCL performed document collection searches in response to SEA's discovery requests;
3. Identification of all search terms (or filters) used in both document collection, and production searches;
4. Identification of all other potentially relevant OOCL custodians or systems;
5. Confirmation that the process outlined in Ms. Sha's Declaration was the process by which OOCL charged SEA demurrage, detention and other fees during the 2020 to 2022 time period.

OOCL responded to this letter on April 17, 2026, stating that it would produce the requested confirmation from its clients as to Mr. Murdoch's authority in due course. Such confirmation has not yet been produced despite SEA's continuing explicit request since March 11, 2026. OOCL further stated that its custodians were limited to those identified in initial disclosures and supplemental identifications provided by SEA. No additional investigation appears to have been made by OOCL and no clarity has been provided as to how custodians with responsive information were determined. Despite SEA's repeated requests that OOCL identify the search terms used in the collection of documents, OOCL has refused to identify them, providing only – and only now with this JSR – the list of search terms used on the already-collected data in its possession. Finally, OOCL refuses to confirm if there are any additional potentially relevant OOCL custodians or systems, and if OOCL

charged SEA detention and demurrage on the specific shipments at issue on the basis stated in Ms. Sha's declaration.

OOCL's declarations, as ordered by the Presiding Officer on February 20 offered OOCL the opportunity to provide additional clarity regarding its discovery process and to confirm that OOCL had met its discovery obligations. OOCL's blunt refusal to supplement the disclosure ordered by this Court unfortunately only raises more questions.

2. MOTIONS UPDATE

a. Motion for Sanctions

In its April 15, 2026 letter, SEA originally notified OOCL of its intent to file a Motion to Compel based on OOCL's failure to comply with the February 20, 2026 Order. Upon further review of OOCL's discovery conduct, SEA converted the contemplated Motion to Compel into a Motion for Sanctions based on OOCL's failure to comply with the February 20, 2026 Order, despite SEA's repeated requests that it do so. SEA advised OOCL accordingly. SEA filed its Motion for Sanctions on April 24, 2026.

OOCL requested additional time to respond to the Motion for Sanctions due to a personal matter. SEA advised OOCL that it would consent to permitting OOCL's response on or before May 11, 2026.

b. Petition for Attorney's Fees

As contemplated in JSR 8, SEA filed its narrowly-scoped exception to the Order Denying SEA's Petition for Attorney Fees on April 13.

3. MEDIATION

Following the April 14, 2026 meet and confer, the Parties exchanged emails between April 15 and April 24, 2026 and solidified mediation logistics. SEA and OOCL have agreed to a one-day

mediation in-person mediation to be held on May 21, 2026, with a preliminary conference scheduled for May 5th.

Respondents - Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd.

1. DISCOVERY

As described below, OOCL has produced hundreds of thousands of documents in response to SEA's discovery requests, has attempted to work cooperatively with SEA throughout this process to avoid additional discovery disputes, and has engaged in numerous and extremely costly efforts to meet SEA's additional requests.

In exchanges of emails and letters between counsel dated February 23, 24, and 27, and March 5 and 10, 2026, the Parties discussed and agreed upon sixty-six (66) search terms to be applied to OOCL's collected documents.¹ OOCL conducted another search of every document in its collection using the Second Search Terms as vetted by SEA. That effort resulted in OOCL production 10 ("PROD010"), which, after review for privilege, was produced to opposing counsel on April 11, 2026, and comprised of 158,220 documents totaling 423,211 pages (Bates Range: OOCL_0077541 – OOCL_0500751). This production was not limited by any date range or by any other terms, other than a privilege screening. No documents resulting from the application of those search terms were withheld.

Separately, as confirmed by counsel via email dated February 24, 2026, OOCL searched every document in its collection for each and every container number and each and every bill of

¹ See OOCL Exhibit 1. OOCL Exhibit 1 compares OOCL's Initial Search Terms against the Second Search Terms. The Second Search Terms were proposed by OOCL to SEA on February 23, 2026 for review and approval.

lading number contained in SEA's spreadsheet marked 24-17_SEA_00059845. That effort resulted in OOCL production 11 (“PROD011”), which was produced after privilege screening on April 11, 2026, and comprised of 29,898 documents totaling 109,108 pages (Bates Range: OOCL_0500752 – OOCL_0609859). This search was not limited by any date range or by any other terms, other than a privilege screening. No CAL was applied to this search. No documents resulting from the application of those search terms were withheld.

Having completed all the searches requested by SEA and producing the supplemental discovery requested by SEA, OOCL believes its document production is complete, subject to any supplemental productions which may be required to resolve disputes arising from objections that have been made in good faith and have not been waived. To date, OOCL has produced a total of 202,905 documents comprising 609,859 pages. OOCL has been and remains committed to complying with its discovery obligations, as evidenced from the above two extensive productions done at the request of SEA.

2. MOTIONS UPDATE

SEA filed a dispositive Motion for Sanctions on April 24, 2026. As required by the Commission’s rules for dispositive motions, OOCL’s response will be filed on or before May 11, 2026.

3. MEDIATION

The Parties have agreed on the appointment of a mediator to assist them with settlement. A preliminary conference with the mediator has been scheduled for May 5, 2026, and mediation has been scheduled for May 21, 2026.

Dated: May 1, 2026

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: May 1, 2026

By: /s/ Rebecca A. Fenneman

**Respondents Orient Overseas Container Line Ltd. and OOCL (Europe)
Ltd. - Exhibit 1**

Initial Search Terms	Second Search Terms
"motor carrier" w/5 nominated	"motor carrier" w/5 nominated
"motor carrier" w/5 CNT	"motor carrier" w/5 CNT
"motor carrier" w/5 agreement	"motor carrier" w/5 agreement
trucker w/5 nominated	(trucker w/5 nominated) AND (Samsung OR SEA)
trucker w/5 CNT	trucker w/5 CNT
trucker w/5 agreement	trucker w/5 agreement
"motor carrier" w/3 services	"motor carrier" w/3 services
"motor carrier" or trucker and (Samsung or SEA or SDS)	"motor carrier" or trucker AND (Samsung or SEA or SDS)
"warehouse" or Facilit! or stor! and (Samsung or SEA or SDS)	"warehouse" or Facilit* or stor* AND (Samsung or SEA or SDS)
waive w/5 charge or mitigat! or cancel	waive w/5 charge or mitigat* or cancel
waive or charge or mitigat! or cancel and detention	(waive or charge or mitigat* or cancel) AND detention
waive or charge or mitigat! or cancel and demurrage	(waive or charge or mitigat* or cancel) AND demurrage AND (Samsung OR SEA)
waive or charge or mitigat! or cancel and costs	(waive or charge or mitigat* or cancel) AND costs
extend w/5 "free time"	extend w/5 "free time"
charge! and responsib! and (Samsung or SEA or SDS)	charge* AND responsib* AND (Samsung or SEA or SDS)
cost! and responsib! and (Samsung or SEA or SDS)	cost* AND responsib* AND (Samsung or SEA or SDS)
fee! and responsib! and (Samsung or SEA or SDS)	fee* AND responsib* AND (Samsung or SEA or SDS)
demand! and pay!	demand* AND pay*
pay! and detention	pay* AND detention
pay! and demurrage	(pay* AND demurrage) AND (Samsung OR SEA)
dispute! and detention	dispute* AND detention
dispute! and demurrage	dispute* AND demurrage
insufficient and information	insufficient AND information
insufficient and detail	insufficient AND detail
basis and detention	basis AND detention
basis and demurrage	basis AND demurrage
(Samsung or SEA or SDS) and detention	(Samsung or SEA or SDS) AND detention
(Samsung or SEA or SDS) and demurrage	(Samsung or SEA or SDS) AND demurrage
Container and belong	Container AND belong
Container w/3 not and own!	Container w/3 not AND own*
"Samsung container" w/5 not	"Samsung container"
Rebill	Rebill
Previous! w/3 bill!	Previous* w/3 bill*
Duplicate! and bill!	Duplicate* AND bill*
Twice and bill!	Twice AND bill*
Handling and delay!	Handling AND delay*
Processing and delay!	Processing AND delay*
Container and delay!	(Container AND delay*) AND (Samsung OR SEA)
Warehouse and delay!	Warehouse AND delay*
Deliver! and delay!	Deliver* AND delay*
Pay and direct!	(Pay AND direct*) AND (Samsung OR SEA)
Release! and container! and pay!	(Release* AND container* AND pay*) AND (Samsung OR SEA)
Retaliat!	Retaliat*
Refus! and space	Refus* AND space
Refus! and cargo	Refus* AND cargo
Den! and space	Den* AND space
Den! and cargo	(Den* AND cargo) AND (Samsung OR SEA)
Space and available	(Space AND available) AND (Samsung OR SEA)
Cannot w/3 accept	Cannot w/3 accept
"will not" w/3 accept	"can't" w/3 accept
"can't" w/3 accept	Decline* w/3 accept
Decline! w/3 accept	Unable w/3 accept

Unable w/3 accept	"common carrier"
"common carrier"	Obligation AND carrier
Obligation and carrier	Obligation AND (Samsung or SEA or SDS)
Obligation and (Samsung or SEA or SDS)	(Responsib* AND carrier) AND (Samsung OR SEA)
Responsib! and carrier	Responsib* AND (Samsung or SEA or SDS)
Responsib! and (Samsung or SEA or SDS)	Rail* w/3 demurrage
Rail! w/3 demurrage	Rail* w/3 storage
Rail! w/3 storage	terminal w/3 storage
terminal w/3 storage	terminal w/3 demurrage
terminal w/3 demurrage	Bethel AND (Samsung or SEA or SDS)
Bethel and (Samsung or SEA or SDS)	Pennsylvania AND (Samsung or SEA or SDS)
Pennsylvania and (Samsung or SEA or SDS)	Maier AND (Samsung or SEA or SDS)
Maier and (Samsung or SEA or SDS)	"peel-off"
"peel-off"	"New York" AND (Samsung or SEA or SDS)
"New York" and (Samsung or SEA or SDS)	
Maier and (Samsung or SEA or SDS)	